OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Questions for Shoalhaven's CEO on the cancelled Wall of Tears exhibition

Sent 1 November 2026 · To Shoalhaven City Council · Response requested by 22 November 2026

OPEN LETTER

To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council
From: Stephen Prothero, Eye on Shoalhaven Council
Date: 1 November 2026
Subject: Questions about the cancellation of the Wall of Tears exhibition at Shoalhaven Regional Gallery

STATUS OF THIS LETTER
This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.
It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.
Replies will be published in full. If no reply is received, that will be recorded as it stands.
Dear Mr Constance,

Shoalhaven Friends of Palestine have told their members that Council cancelled the Wall of Tears exhibition, due to open at Shoalhaven Regional Gallery on 4 November 2026, because of concerns about staff safety. They say they were told on 28 October.

I have been given three documents:

the organisers' letter to members;
what appears to be a Council risk assessment dated 22 October 2026; and

a letter dated 30 October from the South Coast Labour Council to the NSW Commissioner of Police.
I have not verified any of them. The questions below are put so that Council's account can be read alongside the organisers'.

THE DECISION

1. Is it correct that Council cancelled the exhibition on 28 October on staff safety grounds? Who made the decision, on whose advice, and were the Mayor and councillors told before it was made?

1. Sections 17 to 19 of the Work Health and Safety Act 2011 (NSW) require a duty holder to eliminate risks to health and safety so far as is reasonably practicable and, if that is not practicable, to minimise them. Section 18 lists what is weighed: the likelihood and degree of harm, what is known about the risk and ways of reducing it, the availability and suitability of those ways, and cost. Was the decision made in reliance on those provisions, and where is that weighing recorded?

1. In the copy of the risk assessment I hold, every risk is rated Medium or Low after the proposed controls, and none is rated High. What changed between 22 and 28 October that took the risk beyond what those controls could manage? Were alternatives to cancellation considered, and if so why were they rejected?

THE EVIDENCE

1. How many communications did Council receive about the exhibition, and how many contained a threat of violence, damage or disruption, as opposed to objection or criticism? I am told the correspondence relied on included an abusive email directed at a staff member and an email forwarded by a Member of Parliament on behalf of a constituent. Is that correct, and was there anything else? Were any items referred to NSW Police?

1. Did NSW Police give Council any advice or threat assessment about the exhibition, formal or informal? Beyond notifying police of the event, what contact was there? Did Council obtain any other security, legal or work health and safety advice?

THE CONDITIONS

1. The copy lists, as organiser responsibilities, security with metal screening, "investigate armed guards", a cut from eight days to two, entry for named invitees behind locked doors, and no advertising outside closed channels. Were these requirements or proposals? Who was to carry the cost? Have comparable conditions been applied to any other exhibition or event at the Gallery, and when did Council last cancel an exhibition on safety grounds?

1. The copy includes a condition that organisers agree not to "bring Council into dispute" or the event would be cancelled. How does that condition reduce a risk to

staff safety, and what conduct would have breached it?

1. The copy lists “placing council into disrepute”, adverse media attention and a drop in public support among the risks. Did reputation or public criticism play any part in the decision to cancel? Where is the use of this restriciton permitted by legislation in NSW or the Commonwealth, is it beyond the power of the Council?

PROCESS AND CONTEXT

1. The copy is dated five days before Council’s 27 October meeting with the organisers. When were the proposed conditions first given to them? I am told they confirmed in writing that they would meet the conditions and that cancellation followed. Is that correct, and what reason were they given?

1. Sections 46 to 49 of the same Act deal with consulting, cooperating and coordinating with other duty holders, and consulting workers who are directly affected, including when assessing risks and deciding how to reduce them. Before deciding, did Council consult affected staff and any health and safety representative or union, and did it consult and coordinate with the organisers?

1. The organisers say Council representatives planned to attend the Combat Antisemitism Movement’s Sydney local government summit, and that participating councils sign the Sydney Declaration. They also say they have not established that this influenced the decision, and I make no suggestion that it did. Did any Council representative attend or plan to attend, has Council signed or been asked to sign the Declaration, and did any of this have a bearing on the decision?

1. Does Council have a policy on hosting exhibitions on politically sensitive subjects, and was it followed? Does Council intend to publish its reasons for the decision?

1. Is the copy of the risk assessment I hold authentic and final? It refers, for example, to public liability insurance “through Amnesty International” for a Friends of Palestine event.

Yours sincerely,

Stephen Prothero
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